

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #07	CCRB Case #: 202000575	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 01/05/2020 12:26 AM, Sunday, 01/05/2020 12:26 AM	Location of Incident: 8th Avenue and West 127th Street; 32 Precinct stationhouse	18 Mo. SOL 2/19/2022	Precinct: 32		
Date/Time CV Reported Wed, 01/08/2020 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/22/2020 11:30 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Nanette Schoepfer	16606	940720	032 PCT
2. CPT Neil Zuber	00000	931483	032 PCT
3. POM Matthew Weinbel	12189	947599	032 PCT
4. POM Daryn Dellilo	18995	958486	032 PCT
5. POF Jeniffer Nunez	25949	955264	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Arena	08750	960171	032 PCT
2. SGT Joseph Davin	00899	950278	032 PCT
3. SGT Jenny Wong	03524	947613	032 PCT
4. POM David Miller	15521	956933	032 PCT
5. POM Donald Alexandre	00143	937856	024 PCT
6. POM Holger Sarango	09508	951213	032 PCT
7. POM Michael Carolan	13989	954607	032 PCT
8. POM John Shea	29016	951240	032 PCT
9. POM Fengguang Lin	17283	966668	032 PCT
10. POM Whitney Martin	02930	947216	032 PCT
11. POM Denis Cekic	11429	953738	032 PCT
12. POM Christophe Kanhai	21149	958738	032 PCT
13. POF Nadia Ferreyra	04363	965093	032 PCT
14. POF Sajma Hot	05372	960681	032 PCT
15. POM Wilbert Mora	15918	966723	032 PCT
16. SGT James Cleary	01241	946866	032 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Matthew Weinbel	Force: Police Officer Matthew Weinbel used physical force against § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	A . Exonerated
B . POM Matthew Weinbel	Off. Language: Police Officer Matthew Weinbel made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	B . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
C . POM Matthew Weinbel	Off. Language: Police Officer Matthew Weinbel made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	C . Substantiated
D . POF Nanette Schoepfer	Force: Police Officer Nanette Schoepfer used physical force against § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	D . Exonerated
E . POM Matthew Weinbel	Force: Police Officer Matthew Weinbel used physical force against § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	E . Exonerated
F . POM Daryn Dellilo	Force: Police Officer Daryn Dellilo used physical force against § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	F . Exonerated
G . POM Matthew Weinbel	Discourtesy: Police Officer Matthew Weinbel spoke discourteously to § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	G . Substantiated
H . POM Matthew Weinbel	Force: Police Officer Matthew Weinbel used physical force against § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	H . Exonerated
I . POM Matthew Weinbel	Discourtesy: Police Officer Matthew Weinbel spoke discourteously to § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	I . Substantiated
J . POF Nanette Schoepfer	Discourtesy: Police Officer Nanette Schoepfer spoke discourteously to an individual at 8th Avenue and West 127th Street in Manhattan	J . Exonerated
K . POM Matthew Weinbel	Abuse: Police Officer Matthew Weinbel refused to provide his name to § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	K . Unsubstantiated
L . POM Matthew Weinbel	Abuse: Police Officer Matthew Weinbel refused to provide his shield number to § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	L . Unsubstantiated
M . CPT Neil Zuber	Force: Captain Neil Zuber used physical force against § 87(2)(b) at 8th Avenue and West 127th Street in Manhattan	M . Unfounded
N . POM Daryn Dellilo	Discourtesy: Police Officer Daryn Dellilo spoke discourteously to § 87(2)(b) at the 32 Precinct stationhouse	N . Exonerated
O . POF Jeniffer Nunez	Off. Language: Police Officer Jeniffer Nunez made remarks to § 87(2)(b) based upon race at the 32 Precinct stationhouse	O . Substantiated

Case Summary

On January 8, 2020, § 87(2)(b) called NYPD Internal Affairs Bureau to file a complaint (BR1).

On January 5, 2020 at approximately 12:26AM in the vicinity of 2366 Frederick Douglass Boulevard in Manhattan, § 87(2)(b) was with her friend, § 87(2)(b) when she engaged in a fight with some passersby on the street. Police Officer Matthew Weinbel and Police Officer Nanette Schoepfer, both of the 32 Precinct, observed the altercation and tried to intervene. Both officers walked through a crowd of civilians gathered around the altercation and told them to disperse. § 87(2)(b) and § 87(2)(b) did not comply. After PO Weinbel asked § 87(2)(b) to leave, § 87(2)(b) pushed PO Weinbel.

In reaction to § 87(2)(b) push, PO Weinbel pushed and used offensive language against § 87(2)(b) (**Allegation A: Force, exonerated; Allegations B and C: Offensive Language, substantiated**). When PO Schoepfer was watching PO Weinbel and § 87(2)(b) was trying to collect herself and approached PO Schoepfer multiple times, eventually punching PO Schoepfer in the neck. PO Schoepfer put her hands out to put distance between herself and § 87(2)(b) and then PO Weinbel pushed § 87(2)(b) away from PO Schoepfer (**Allegations D and E: Force, exonerated**). PO Weinbel and PO Schoepfer called for additional units and Police Officer Daryn Dellilo, Police Officer Anthony Arena, and Captain Neil Zuber, all of the 32 Precinct, responded. In an attempt to put § 87(2)(b) in custody, PO Dellilo used force and PO Weinbel spoke discourteously to § 87(2)(b) before she was arrested (**Allegation F: Force, exonerated; Allegation G: Discourtesy, substantiated**). When § 87(2)(b) physically pushed officers to interfere with § 87(2)(b) arrest, PO Weinbel pulled him away and spoke discourteously (**Allegation H: Force, exonerated; Allegation I: Discourtesy, substantiated**). After backing away from § 87(2)(b) PO Schoepfer cursed at an unidentified civilian who confronted her about how she was doing her job (**Allegation J: Discourtesy, exonerated**). Before PO Weinbel left the location, § 87(2)(b) alleged that he asked PO Weinbel for his name and shield number and PO Weinbel refused provide it (**Allegation K and L: Abuse of Authority, unsubstantiated**). Captain Zuber and other officers arrested § 87(2)(b) and he alleged that Captain Zuber kneed him in the back (**Allegation M: Force, unfounded**). At the stationhouse after her arrest, PO Dellilo spoke discourteously, and Police Officer Jeniffer Nunez of the 32 Precinct used offensive language directed at § 87(2)(b) (**Allegation N: Discourtesy, exonerated; Allegation O: Offensive Language, substantiated**).

The investigation received 29 BWC videos (IA#164-192).

Findings and Recommendations

Allegation (A) Force: Police Officer Matthew Weinbel used physical force against § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (B) Offensive Language: Police Officer Matthew Weinbel made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (C) Offensive Language: Police Officer Matthew Weinbel made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b) at 8th Avenue and West 127th Street

On January 5, 2020 at approximately 12:26AM, § 87(2)(b) and her friend, § 87(2)(b) left Harlem BBQ. On the street, they recognized a few people who were in the restaurant. § 87(2)(b) did not know why, but she began to fight with these civilians outside of 2366 Frederick Douglass Boulevard at the corner of 8th Avenue and 127th Street in Harlem. § 87(2)(b) and § 87(2)(b) saw PO Weinbel and PO Schoepfer arrive in their marked vehicle (BR2; BR3).

According to PO Weinbel's BWC at 00:38 (BR4) and § 87(2)(b) and PO Schoepfer's CCRB testimony (BR3; BR5), there were 15-30 civilians in a crowd that were filming the incident. As PO Weinbel and PO Schoepfer walked through the crowd trying to disperse the civilians, § 87(2)(b) began cursing at PO Weinbel. § 87(2)(b) did not comply with orders to disperse and bumped PO Weinbel's shoulder before reaching out and pushing PO Weinbel (BR6; BR5). PO Weinbel's BWC (BR4) at 1:14 and PO Schoepfer's BWC at 1:13 (BR7) show § 87(2)(b) make physical contact with PO Weinbel. PO Weinbel told the investigation that he pushed § 87(2)(b) on his torso because § 87(2)(b) initiated the pushing by bumping him first (BR6).

PO Weinbel's BWC (BR4) at 1:19 and 1:25 show him calling § 87(2)(b) a "pussy bitch" and a "fucking faggot" multiple times. At this point, § 87(2)(b) has backed away from officers and other civilians pushed him away from PO Weinbel. PO Weinbel said he made these statements out of frustration at the situation (BR6).

The NYPD Patrol Guide section 221-01 entitled "Force Guidelines" explains that Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, an application of force must be reasonable under the circumstances. The Patrol Guide goes on to state that the reasonableness of the use of force is based upon the totality of the circumstances known by the MOS at the time of the use of force (BR8).

The NYPD Patrol Guide Procedure 203-10 explains that officers are prohibited from using discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability (BR9).

§ 87(2)(b) first made physical contact with PO Weinbel multiple times while not complying with police orders. § 87(2)(g) it is therefore recommended that **Allegation A** be closed as **exonerated**.

PO Weinbel acknowledged that he was frustrated by § 87(2)(b) actions. § 87(2)(g) it is recommended that **Allegations B** and **C** be closed as **substantiated**.

Allegation (D) Force: Police Officer Nanette Schoepfer used physical force against § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (E) Force: Police Officer Matthew Weinbel used physical force against § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (F) Force: Police Officer Daryn Dellilo used physical force against § 87(2)(b)

Allegation (G) Discourtesy: Police Officer Matthew Weinbel spoke discourteously to § 87(2)(b) at 8th Avenue and West 127th Street

While PO Weinbel and PO Schoepfer were still trying to disperse the crowd, § 87(2)(b) approached PO Schoepfer twice (BR2; BR5). PO Schoepfer told the CCRB that § 87(2)(b) was intoxicated, stated she wanted to fight, and acted irately by swinging two fists at PO Schoepfer. PO Schoepfer said she then extended her arms to keep her away and convey that § 87(2)(b) needed to leave (BR5). According to § 87(2)(b) it was at this point when PO Schoepfer shoved her (BR2). At 1:27 in PO Schoepfer's BWC (BR7) and in cell phone footage taken by a bystander at 00:05 (BR12), § 87(2)(b) approached PO Schoepfer again and punched her once in the right side of her neck.

PO Schoepfer said she was in pain and stepped back from § 87(2)(b) as § 87(2)(b) approached her again for no reason (BR5). PO Schoepfer later sought medical attention for the punch to the throat (BR10; BR11). § 87(2)(b) did not provide a reason as to why she had been approaching PO Schoepfer, but she and § 87(2)(b) told the CCRB that it was at this

point when PO Weinbel shoved § 87(2)(b) harder with two hands on her upper body so that she fell to the ground (BR2; BR3). PO Weinbel pushed § 87(2)(b) away from PO Schoepfer because she had assaulted PO Schoepfer and he needed to gain control of the situation (BR5; BR6). PO Weinbel's BWC at 1:31 (BR4) shows him push § 87(2)(b) onto the ground away from PO Schoepfer.

Other officers then arrived and assisted in § 87(2)(b) arrest (BR6). In this process, § 87(2)(b) and § 87(2)(b) alleged that PO Dellilo put his knee into § 87(2)(b) back as she was on the ground (BR2; BR3). PO Dellilo's BWC (BR13) from 00:00-00:31 shows only § 87(2)(b) upper back and cell phone footage (BR12) from 00:15-00:19 shows PO Dellilo kneel over § 87(2)(b) thighs and buttocks as she attempts to roll over on the ground.

After § 87(2)(b) attempted to sit up from the ground, PO Weinbel restrains her by grabbing her arm (BR6). While restraining her arm, PO Weinbel asks § 87(2)(b) "who the fuck are you?" at 1:33 in his BWC (BR4). PO Weinbel said this out of frustration in a stressful situation (BR6).

As noted above, Patrol Guide Procedure 221-01 allows officers to use reasonable force to gain compliance (BR8).

According to NYPD Patrol Guide Procedure 200-02, The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect (BR14).

DCT Case #79627/04 concluded that an officer's use of an impolite word as a verbal slip during a stressful street encounter where that officer is attempting to maintain control of the situation and a single profanity uttered during a tense standoff with an unruly civilian do not rise to the level of actionable misconduct (BR15).

As § 87(2)(b) stated she wanted to fight, approached PO Schoepfer twice, and then punched PO Schoepfer, § 87(2)(g)

PO Dellilo did not kneel on § 87(2)(b) back but used his legs § 87(2)(g)

As such, it is recommended that **Allegations D, E, and F** be closed as **exonerated**.

As per PO Weinbel's BWC, when PO Weinbel said, "who the fuck are you?", he was not attempting to gain control § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation G** be closed as **substantiated**.

Allegation (H) Force: Police Officer Matthew Weinbel used physical force against § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (I) Discourtesy: Police Officer Matthew Weinbel spoke discourteously to § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (J) Discourtesy: Police Officer Nanette Schoepfer spoke discourteously to an individual at 8th Avenue and West 127th Street

Allegation (K) Abuse of Authority: Police Officer Matthew Weinbel refused to provide his name to § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (L) Abuse of Authority: Police Officer Matthew Weinbel refused to provide his shield number to § 87(2)(b) at 8th Avenue and West 127th Street

Allegation (M) Force: Neil Zuber used physical force against § 87(2)(b) at 8th Avenue and West 127th Street

§ 87(2)(b) testified that he was helping § 87(2)(b) by trying to take officers off her after she was slammed to the ground (BR3). PO Weinbel testified that § 87(2)(b) was interfering with the arrest as he was physically forcing his way through officers to reach § 87(2)(b) (BR6).

From 1:42-1:55 in PO Weinbel's BWC (BR4) and at 1:32 in PO Schoepfer's BWC (BR7), § 87(2)(b) pushes past multiple officers and other civilians as officers and civilians put their arms up to stop him from reaching § 87(2)(b) on the ground. At 1:55 in PO Weinbel's BWC (BR4) and 1:09 in PO Arena's BWC (BR17), PO Weinbel pulls § 87(2)(b) backwards by his coat to get him away from the officers.

At 1:55 in his BWC (BR4), PO Weinbel calls § 87(2)(b) a "fucking punk ass bitch" because it was a chaotic and stressful scene (BR6).

After § 87(2)(b) punched PO Schoepfer in the throat at 1:27 in her BWC (BR7), PO Schoepfer is in pain, backs up from the § 87(2)(b) and does not make any contact with her after that (BR5). At 2:00 in PO Schoepfer's BWC (BR7), an unidentified female civilian in the crowd tells PO Schoepfer that PO Schoepfer should not have let the male officers act against the female and that PO Schoepfer should have punched the female. At 2:13 in her BWC (BR7), PO Schoepfer responds to the female by stating, "how about you get the fuck out of my face right now. How about you shut the fuck up and leave." She said this because she was in pain, an outside source was trying to give her unwanted input into how she should do her job, and she just wanted the person to go away (BR5).

PO Weinbel and PO Schoepfer testified that after other officers put § 87(2)(b) under arrest and PO Weinbel pulled § 87(2)(b) coat, they spoke to Captain Zuber who told them they could turn off their BWC. (BR5; BR6). PO Weinbel and PO Schoepfer got in their vehicle to seek medical attention for themselves. § 87(2)(b) was upset at PO Weinbel for pulling his coat. When he saw PO Weinbel in his car, he approached to get identifying information (BR3; BR6).

§ 87(2)(b) alleged that he requested PO Weinbel's name and shield number and PO Weinbel refused to provide that information (BR3). PO Weinbel testified that § 87(2)(b) asked only for his shield number and he provided it; § 87(2)(b) never asked him for his name (BR6). PO Weinbel did not provide his name because § 87(2)(b) did not ask for it.

§ 87(2)(b) said that Captain Zuber told him to step away from PO Weinbel's car. When he did not, officers pushed him against a vehicle and arrested him. While against the car, § 87(2)(b) alleged that Captain Zuber kneed him in the back three to four times. PO Dellilo's BWC (BR18) from 1:03-2:02 and cell phone footage (BR19) from 00:59-1:14 show § 87(2)(b) arrest as he described but Captain Zuber did not ever kneel him in the back.

As noted above, Patrol Guide Procedure 221-01, allows officers to use reasonable force to gain compliance (BR8).

As noted above, Patrol Guide Procedure 200-02 states that officers must treat every citizen with compassion, courtesy, professionalism, and respect (BR14).

As noted above, DCT Case #79627/04 states that a police officer's verbal slip or single profanity does not rise to the level of actionable misconduct if attempting to maintain control of a chaotic situation (BR15).

PO Weinbel and § 87(2)(b) told the CCRB that § 87(2)(b) was physically interfering with officers arresting § 87(2)(b) (BR6; BR3). When PO Weinbel pulled § 87(2)(b) jacket to stop him from obstructing the arrest, he was trying to get the chaotic situation under control and assist other officers to put § 87(2)(b) in custody. § 87(2)(g)

§ 87(2)(g) It is recommended that **Allegation H** be closed as **exonerated**.

§ 87(2)(g) PO Weinbel calling § 87(2)(b) a "fucking punk ass bitch" § 87(2)(g) It is therefore recommended that **Allegation I** be closed as **substantiated**.

PO Schoepfer did not initiate any conversation with the unidentified female civilian and was in pain from being punched. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation J** be closed as **exonerated**.

§ 87(2)(g)

it is recommended that **Allegations K and L** be closed as **unsubstantiated**.

PO Dellio's BWC shows Captain Zuber's entire interaction with § 87(2)(b) as he is affixing the handcuffs and does not corroborate his allegation that Captain Zuber put his knee in his back § 87(2)(g)

it is recommended that **Allegation M** be closed as **unfounded**.

Allegation (N) Discourtesy: Police Officer Daryn Dellilo spoke discourteously to § 87(2)(b) at the 32 Precinct stationhouse

Allegation (O) Offensive Language: Police Officer Jeniffer Nunez made remarks to § 87(2)(b) based upon race at the 32 Precinct stationhouse

After her arrest, § 87(2)(b) was spitting, kicking, and biting EMT and Police Officer Sajma Hot, PO Dellilo, and Police Officer Jeniffer Nunez, all of the 32 Precinct, in the 32 Precinct stationhouse (BR20).

PO Nunez's BWC (BR21) at 1:00 shows PO Dellilo state, "don't fucking bite me" to § 87(2)(b) after she bites him. PO Nunez calls § 87(2)(b) a "savage" at 1:29 on her BWC. PO Nunez testified that she said this because § 87(2)(b) continued to be belligerent and uncivil to officers and would not calm down after being told to do so multiple times (BR21).

As noted above, Patrol Guide Procedure 200-02 states that officers must treat every citizen with compassion, courtesy, professionalism, and respect (BR14).

As noted above, DCT Case #79627/04 states that a police officer's verbal slip does not rise to the level of actionable misconduct if attempting to maintain control of a chaotic situation (BR15).

As noted above, The NYPD Patrol Guide Procedure 203-10 explains that officers are prohibited from using discourteous or disrespectful remarks regarding another person's ethnicity or race (BR9).

PO Nunez's BWC and testimony (BR20; BR21) demonstrate that § 87(2)(b) was physically and verbally resisting all officers and attempted to bite PO Dellilo. § 87(2)(g)

it is recommended that **Allegation N** be closed as **exonerated**.

PO Nunez acknowledged that she called § 87(2)(b) a savage because she categorized her behavior as belligerent and uncivil. § 87(2)(g)

it is recommended that **Allegation O** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB Complaint to which § 87(2)(b) has been a party (BR22).

- § 87(2)(b)

- Captain Neil Zuber has been a member of service for 18 years and has been subject in 13 CCRB complaints and 36 allegations, of which two were substantiated (BR 24).
 - 201303672 involved substantiated allegations of a search of a person against Captain Zuber. The Board recommended Charges and the NYPD declined to prosecute.

- 201509988 involved substantiated allegations of a retaliatory arrest against Captain Zuber. The Board recommended Command Discipline A and the NYPD declined to prosecute.
- § 87(2)(g)
- Police Officer Nanette Schoepfer has been a member of service for 14 years and has been subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Matthew Weinbel has been a member of service for 12 years and has been subject in one CCRB complaint and one allegation, none of which were substantiated.
- § 87(2)(g)
- Police Officer Daryn Dellilo has been a member of service for 5 years and has been subject in two CCRB complaints and five allegations, none of which were substantiated.
- § 87(2)(g)
- Police Officer Jeniffer Nunez has been a member of service for 7 years and has been subject in one CCRB complaints and one allegation, none of which were substantiated.
- § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of November 6, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR31).

Squad No.: 7

Investigator: Lianne May Investigator Lianne May December 3, 2020
Signature Print Title & Name Date

Squad Leader: _____

Signature _____

Manager Vanessa Rosen _____

Print Title & Name _____

December 4, 2020 _____

Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____